सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part III **Date: 07.09.2018**

दिनांक 29.08.2018 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 29.08.2018

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 29.08.2018 को 11:30 बजे हुई। जिसकी अध्यक्षता श्री एस. अनंत कृष्णन, आयुक्त (निर्यात), द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 29.08.2018 at 11.30 A.M. was presided over by Shri S. Anantha Krishsnan, Commissioner of Customs(Export), ACC, Sahar.

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री राजू सक्थिवेल/Shri Raju Sakthivel अपर आयुक्त (निर्यात)/Addl. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री एस. के. एच. मेश्राम/ Shri S. K. H. Meshram, अपर आयुक्त /Addl. Commissioner(APSC)	Customs, APSC, Andheri सीमाशुल्क, हवाई अड्डा विशेष कार्गो, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री तपन कुमार Shri Tapan Kumar, संयुक्त आयुक्त (निर्यात)Jt. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायक आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री प्रसाथ जे./ Shri Prasath J. उप आयुक्त (आयात)/Dy. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री महेंद्र कुमार/Shri Mahender Kumar उप आयुक्त (आयात)/Dy. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री एम. सी. शेख/Shri M. C. Shaikh सहायक आयुक्त (आयात)/Asstt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Manoj Singh, Mohamed Naser,	MIAL (Custodian)
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri K. Thakker, Shri Ketan Desai	BCBA (formerly known as BCHAA)
Shri Bala Ayer, Shri M.G. Chaurasia, Mrs. Chaitaly Mehta	ACAAI
Shri Sunil Kumar Singh	SBI
Shri K.D. Dhule, Shri S. M. Sharma	Air India & AIATSL
Mrs. Manita Churi, Shri Abhishek Chawla	Asst. Drug Controller
Ms. Jyotsna Patil	JET Airways
Shri Prasad Gengusetti	Emirates
Shri Sanjay Patankar	Emirates Cargo
Shri Sandeep B. Kadam	M/s. Liladhar Pasoo

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1. A. Requirement of bonded Warehouse within air cargo complex for bonding and Re-Export purpose:

In the previous meeting the representative of BCBA submitted that facility of bonded Warehouse within air cargo complex with the custodian (MIAL & Air India) is highly required for the importers. Many consignments are imported for re-export to third country are facing tremendous delay. Presently, such import consignments are taking 15 to 20 days for Bonding and Re-Export to third country. In this competitive international market, the Indian merchants are far behind due to heavy cost to handle such transaction. The facility of bonding consignment at ACC will boost the export as well as reduce the cost for the entrepreneurs. The representative of MIAL has assured the house that they will look into the issue and reply the house within one month.

The representative of MIAL reiterated that at present there is no space available within Air Cargo Complex, however they are in the process of identifying the required space and feasibility study is in progress to know the estimated volume of such shipments. He assured the house that they will come up with some concrete proposal within one month.

[Action: MIAL]

B. Tremendous delay in clearing the import consignments arrived at Air India Shed, points of actions required by Air India:

In the previous meeting the representative of BCBA raised the following points:

a. After arrival, the packages are getting deposited to shed for clearance late by more than 24 Hrs.

b. Big lot, say where the number of packages are higher in quantity with heavy weight of the consignment are landing part, no intimations are available to importers about this as the EDI systems show the total packages are arrived in one IGM. During physical clearance, it is found by the CB that the goods are arrived in part.

c. While CB takes the delivery of the RMS consignment (for e.g. one package fifty kgs), on post clearance, importer is complaining part receipt of the goods, and later, it is found that package was delivered in part, this is due to mishandling of the pallet which was broken and no re packing was done when it was brake at AI warehouse.

d. The procedures followed by the AI to write the R Number on each package should be changed like MIAL has done. To give R Number to each package is required manpower like loaders, fork lift and duty officer. By following this procedure, the errors are happening by giving wrong R Numbers on the packages or the packages are getting damages (it is carried out under carpet) and no corrective actions takes place.

e. Air India is not providing the facility of the online payment of the warehouse charges for import consignments, the same facilities is comfortably available by the other custodian (MIAL). The members have to stand in the long queue for payment. This is directly effecting the increase in dwell time records.

f. During the rain, there is leakage found at AI light shed need to cover the roof.

g. Inside the export shed, the loaders are not available for unloading of the packages.

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h. Needs more manpower, forklift, exhaust fans, lights, camera in the shed is required.

Commissioner (Import) informed the house that problem faced by the trade has been communicated to Shri Mukesh Bhatia, Executive Director (WR), Air India Limited with a request to look into the matter and issue necessary directions to resolve the grievances of the trade for smooth clearance of the goods.

[Action: Air India]

2. **New point taken for discussion in the meeting**

A. Issuance of Registration Certificate for Consolidator at ACC:

In the instant meeting, the representative of BCBA submitted that the CBs at Air Cargo facing difficulty in obtaining themselves as a "Consolidator", CBs has to visit New Custom House to obtain the registration certificate as a consolidator. They requested that such arrangements should be made at ACC Mumbai.

The Chairman informed that the point raised by trade representative will be looked into and if need be there, same will be taken up with the Commissioner of Customs (General), ACC Mumbai and Commissioner of Customs (General), New Custom House, Mumbai.

[Action: Customs]

B. Erroneously charging of Safe Guard Duty on all goods covered under the CTH 8541 by the EDI system:

In the instant meeting, the representative of BCBA submitted that the CBIC has issued the Customs Notification (SG) No. 1/2018 dated 30.07.2018 charging safe guard duty @25% on "Solar Cells whether or not assembled in modules or panels". Erroneously the EDI system is charging SG duty 25% to all goods covered under the CTH 8541 which is resulting in delay in clearance, the importers have to recall the bills of entry to re assess the goods to NIL duty from SG Duty 25% charged by the system.

The Commissioner (Import) informed that the Chairman, CBIC has taken up the issue and has issued instructions to the DG(Systems) for necessary corrections. The system error may be resolved shortly.

[Action: Point Closed]

C. Uploading of Latest Posting Orders:

In the instant meeting, the representative of BCBA submitted that the latest posting orders should be uploaded on ACC Website for information to Public.

The Additional Commissioner (Import) informed that the latest posting orders have already been uploaded on ACC website.

[Action: Point Closed]

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D. Requirement of Laser Printer in the Shed:

In the instant meeting, the representative of BCBA submitted that Laser Printer is required in the shed to resolve the print quality of BE, SB after OCC and LEO.

The representative of MIAL has informed the house that they have not received any complaint from trade in this regard. The Chairman directed the representative of MIAL to look into the matter immediately and resolve the issue as soon as possible.

[Action: MIAL]

E. Increase Working Hours of Drug Controller Office:

In the instant meeting, the representative of BCBA submitted that CBIC has implemented 24x7 working whereas Assistant Drug Controller (ADC) vide its office Order No. 5/00/ADC/Mumbai/2018/1174 dated 25.06.2018 is detrimental to the endeavour of reduction in dwell time for clearance. Due to change in working hours of the ADC Office, the importers/customs brokers are facing difficulty in clearance of the imports and export consignments. This reduced working hours is not only increase the dwell time records but also increase the cost and competition for the trade members, we request to restore the working hours on Saturday from 10 am to 5.30 pm and only 2nd Saturday shall be closed holidays.

The representative of Assistant Drug Controller, ACC informed the house that the change in working hours has been implemented on All India basis as per the decision taken at the Directorate level. However, the total working hours is same and the officers from ADC office has been made available to the trade on holidays also for attending the clearance of urgent shipments. He informed that the trade's concerns will be forwarded to the higher authorities for further decision and necessary action.

[Action: Drug Controller Office]

F. Non intimation of Cargo Arrival Information by Airlines:

In the instant meeting, the representative of BCBA submitted that Cargo arrival information is not given to importer by the airliners, it is also reported that the airlines sent intimation on post arrival without providing AWB copy or import invoice. This is directly effecting to importers liability to pay late submission charges of the Bills of Entry. Airline must provide pre alert with full set of documents to the importers/customs broker well before arrival of the consignments.

The representative of Airlines informed the house that copy of AWB could not be forwarded through email. However, they forward Airway Bill No. through email to Custom Broker/Importer and they can find out all the details and movement of the cargo from the website of the Airlines through Cargo IQ portal. The Chairman stated that if there is grievance against any specific airlines, the trade should bring the same to his notice and same will be taken up with the airlines.

[Action: Point Closed]

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G. Incomplete data entry of HAWB details:

In the instant meeting, the representative of BCBA submitted that delay in import clearance due to incomplete data entry of HAWB details in the custodian computers. For example the HAWB number is LON123456, the ICEGATE submission of the HAWB number with or without Alphabet, it is delaying the clearance, the data entry of the custodian are often found without alphabet, instruction must be given to the console agent, custodian to follow specific procedures to submit the HAWB details uniform manner to avoid amendment in the bills of entry/custodian records etc.

The matter discussed in the house with trade representative and custodian. The trade representatives BCBA, ACAAI and custodian MIAL has agreed that HAWB should be issued in alphanumeric format. It was also agreed that a uniform practice should be followed by stake holders. Additional Commissioner (Import) suggested that BCBA should submit 5-6 representative samples of such HAWB so that uniform guidelines can be prescribed, if required.

[Action: Point Closed]

H. Poor condition of Roads approaching towards ACC:

In the instant meeting, the representative of BCBA submitted that roads approaching towards ACC, Mumbai is in very poor condition which is leading to heavy traffic and congestion.

The representative of MIAL informed the house that potholes on the entrance road of ACC which is in the custody of MIAL will be repaired shortly. He also informed the house that they have written letter to the Municipal Corporation to repair portion of the entrance road which is not in the custody of MIAL.

[Action: Point Closed]

I. Dispense of the register maintained in Batch Office:

In the instant meeting, the representative of ACAAI submitted that for clearance of Direct Delivery shipments, the Batch office maintains a Register which has no name. There are 14 items to be entered in this register. This is a manual entry and serves no purpose and is a waste of time of the customs broker. We request to please remove this register completely as all the details being entered are already available in ICEGATE against that particular BE.

The Commissioner (Import) informed the house that action has already been taken in this regard. Instructions have been issued to reduce the columns in the said register and only such columns should be there which is compulsorily required for records and tracking.

[Action: Point Closed]

J. E-Sanchit Facility for Re-Import:

In the instant meeting, the representative of ACAAI submitted that in E-Sanchit, when we have a re-import shipment, there is no provision to upload the export documents like "Shipping bills, Export Invoice etc." We request that this facility be made available in E-Sanchit.

The Chairman assured the trade representative that the matter will be communicated to the DG Systems to facilitate E-Sanchit for re-import.

[Action: Customs]

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K. E-Sanchit for Export:

In the instant meeting, the representative of ACAAI submitted that E-Sanchit facility be made available for Exports as well.

The CBIC has issued Circular No.29/2018-Customs dated 30.08.2018 for implementation of E-Sanchit for uploading documents under SWIFT in Export on a pilot basis at Air Cargo Complex, New Delhi and Chennai Custom House for 15 days from 01.09.2018. After 15 days of the launch of the facility, a review will be carried out, and thereafter, it will be introduced as a mandatory requirement.

[Action: Point Closed]

L. Working of AEO Cell at ACC:

The representative from BCBA appreciated the work of AEO Team at the Air Cargo Complex. They also appreciated the officer of AEO Team for cooperation and deliberations of extensive information regarding Authorised Economic Operator programme. They informed the house that because of their guidance, many of their members have already got AEO certification.

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदय आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Chairman of the PTFC, Commissioner of Customs (Export), Mumbai Customs Zone-III.

7/9/18

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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